CHAPTER 7

The Usual Suspects

Race at the Airport

In chapter 6 we spent considerable time examining the case of Andrew Sokolow, who was initially identified as a possible drug courier because he fitted a profile that included his appearance, his behavior, and his travel pattern. Yet one of the most noteworthy aspects of Mr. Sokolow's involvement with the question of profiling was that it arose in a context in which race was not an issue. Andrew Sokolow was a white male stopped as a suspected drug courier not because of anything to do with his racial or ethnic background, but because of his age, his clothing, his demeanor, and especially his travel behavior. It was Andrew Sokolow's black jumpsuit, gold jewelry, cash purchase, and quick trip from Honolulu to Miami that was his undoing, and in that context the controversy about profiling was a controversy about statistics and not about race. Or, to misappropriate Dr. Martin Luther King Jr.'s memorable words, Andrew

Sokolow was judged not by the color of his skin, but by the contents of his knapsack.[1]

Not many years have passed since Andrew Sokolow's case, but these days when profiling is the subject it is race that is the question. Issues of race and ethnicity have become inextricably connected with the issue of profiling, and debates focusing on race and ethnicity have irreversibly transformed the nature of the discussion about profiling.[2]

In the context of customs searches at airports, searches largely though not exclusively of those suspected of transporting illegal narcotics, some of the bad odor associated with profiling stems from the discovery that officials of the U.S. Customs Service were in the 1990s subjecting a disproportionately large number of African-American women to intrusive and humiliating body-cavity searches. Many of these searches took place at Chicago's O'Hare Airport, although there were incidents at other airports as well.[3] At O'Hare the vast majority of the women who were searched turned out to have been doing nothing wrong, and the subsequent investigation into these events made it clear that almost all the African-American women who were searched were initially targeted overwhelmingly because of their race.

The incidents at O'Hare intensified the condemnation of racial profiling, but were those events accurately described as racial profiling? We have to look more closely at what actually happened at O'Hare in order to understand exactly what it is that is being condemned. Although many people appeared to believe that the targeting of African-American women was a product of a formula that included race and gender among its elements, it turns out that at O'Hare this was not the case at all. As with the targeting of Andrew Sokolow, the customs officers at

O'Hare did indeed have a formula—a profile, in one sense of the term—but that formula made no mention whatsoever of either race or gender as factors whose presence increased the likelihood that the passenger was transporting unlawful drugs. And this is not surprising, because, according to the Customs Service, there was no evidence that either race or gender was statistically relevant to identifying drug couriers. A drug-courier algorithm or profile that added race and gender to the array of factors in the O'Hare profile, and indeed in the profile that snared Andrew Sokolow, would have made no incremental contribution to the effectiveness of the profile.

Race having been spurious in the underlying reality and nonexistent in any formal profiles that existed, the incidents at O'Hare were caused not by the inclusion of race or gender in a list of factors to be used in determining whom to search, but rather by individual customs officials' deciding on their own, or on the basis of collective but false folk wisdom, that African-American women were to be targeted. We do not know why they did so, but we can assume that it was some combination of two different motives. One was unalloyed racial hostility, not prompted by empirical beliefs of any kind, but rather by pure animosity toward African Americans. The other was a belief, but an unfounded one, that race and gender were somehow relevant to the ability to select likely drug couriers from the full population of passengers traveling through O'Hare Airport. But because the former motive did not even purport to be based on empirically reliable generalizations, and because the latter was based on generalizations that had no basis in fact or experience, it should come as little surprise that when the practice of targeting African-American women was halted, the effectiveness in locating drug smugglers actually increased.

When spurious factors were eliminated, therefore, a higher percentage of searches yielded contraband than had been the case when African-American women were being disproportionately stopped, which was only to be expected. The elimination of a spurious factor cannot help but increase the probability of successful identification of those with illegal drugs.

Although the events at O'Hare have commonly attracted the label "profile," the label seems inapt, for the targeting of African-American women was based either on no profile at all or on an empirically spurious one. What was transpiring at O'Hare was some combination of targeting a disliked group and reliance on a belief that was little different, statistically, from customs officials' stopping those with heads of a certain shape in the mistaken belief that head shape probabilistically indicates tendencies to illegal activity. The customs officials at O'Hare were neither following a written formula nor using a factor that had any statistical validity at all. It is no wonder that elimination of the practice turned out to increase efficiency.

The actual nature of the events at O'Hare and other airports should give us pause before we too quickly accept the lessons of Justice Marshall's dissenting opinion in the *Sokolow* case.[4] Justice Marshall, it will be recalled, objected to written formulas of the kind that led to the focus on Andrew Sokolow because Justice Marshall believed that the formulas would interfere with the ability of officers to make "sensitive and fact-specific inferences" in individual cases. At O'Hare, however, officers' practice of making sensitive and fact-specific inferences was precisely the problem. Given the discretion to make sensitive and fact-specific inferences, the Customs Service officials used that discretion to target African-American

women even though there was no statistical basis for their doing so. Indeed, had the officers stuck mechanically and rigidly to the actual written formula for identifying drug couriers, the problem would not have arisen. Only when and because the officers were given the freedom to depart from that formula did they have the opening to introduce statistically spurious factors into the equation. The incidents at O'Hare, therefore, provide a strong argument against Justice Marshall's position. In a world of ideal customs officials, it might be better to rely on their sensitive and fact-specific inferences, for such inferences would enable the officers to avoid the inevitable under- and overinclusiveness of any set formula. But with the actual and decidedly nonideal customs officials who were operating at O'Hare, the wrong, we now see, was committed not because of a formula, but precisely because of the absence of one. As with the numerous studies showing the superiority of actuarial to clinical assessments of dangerous (as discussed in chapter 3), the exercise of individual discretion is often, though of course not always, inferior to decision-making based on more systematically compiled actuarial information.

Nor should this come as a surprise. For much the same reason that people typically ignore base-rate information, again as discussed in chapter 3, people are often inclined to overestimate the proportion of a particularly salient component within a larger population.[5] Because race is salient for most people, they are consequently likely to amplify the extent to which members of a race other than their own are represented in a larger population with negative attributes, such as the population of apprehended drug couriers, just because the observer is likely to focus more on the "out group" members of that

population, and consequently take those "out group" members as being more representative of the group than they in fact are.[6]

If "racial profiling" is taken to mean the identification of people because their race appeared on a formal list of suspicion-raising factors, then it turns out that the O'Hare events provide us an example not of racial profiling at all, but of one or both of the two quite different pathologies just noted.[7] To repeat, one is simple racial animus, in which hostile acts against people because of their race are based on pure dislike of people of that race, with no pretense of an empirical basis for that dislike. For some people their dislike of people from races other than their own is no more empirically grounded than my dislike of anchovies and olives, dislikes that are based on no empirical facts about anchovies and olives other than that they do not appeal to me. It is more than likely that at least some of this type of nonempirical primal animus, possibly a function of the tendency of (too) many people to dislike people different from themselves, was the motivation behind the practices at O'Hare.[8]

In addition to stemming from outright racial hostility, the practices at O'Hare were also likely, as noted above, to be at least partially the product of mistaken beliefs on the part of the officers that race was a reliable predictor of narcotics trafficking. Subscribing to such an empirically unfounded belief may itself be the product of animus, or it may simply be a matter of negligence in relying on faulty sources of information; but once again the phenomenon is quite different from the reliance on race under circumstances in which race is a nonspurious indicator of likely criminal conduct. At O'Hare, however, the behavior of the customs officials had no such empirical grounding, and was probably a combination of

pure animus and mistaken empirical beliefs, both of which need to be distinguished from an empirically grounded profile.[9] Rather than basing their actions on a genuine profile, therefore, the officers at O'Hare engaged in a series of acts that faithful adherence to a statistically sound profile could have done much to constrain.

The use of race in airport drug-courier investigation may be spurious, but the intellectually harder and potentially more important issues arise when race turns out to be nonspurious.[10] And although there may be such cases involving contraband at ports of entry (especially when there is a high correlation between race and nationality and a high correlation between nationality and country of narcotics origin, or when the groups engaged in certain kinds of unlawful activity are themselves organized along lines of national origin), and although there are probably such cases involving street-level narcotics offenses, the most salient example is that of suspected terrorists who would seek to bomb, hijack, or otherwise interfere with the operation of commercial airplanes. Unlike being a drug courier, here it appears that neither race nor gender is spurious. Those who commit acts of airplane terrorism, both before and after September 11, 2001, are disproportionately younger Muslim men of Middle Eastern background.[11] Unlike the case of stopping African-American women for suspected drug offenses, stopping men younger than middle-aged of Middle Eastern appearance for suspected terrorist activity seems hardly to be spurious. And if that is so, does that fact alone make the practice permissible?

In examining this issue, it is worthwhile recalling from chapter 6 the type of profiles used both by the Internal Revenue Service to determine likely targets for an audit and by the Customs Service in *Sokolow* to deter-

mine likely targets for a drug search. In each of those cases the official and statistically verified profiles contained multiple factors—as many as fifty in the computation of a taxpayer's Discriminant Function score, and approximately twenty in the case of the Customs Service profile of typical drug couriers. Although in neither case was any one factor either a necessary or a sufficient condition for further investigation, in both cases any of a large number of factors was relevant, and the profile was a complex algorithm of all the factors. Customs officials did not stop all nervous passengers, or all passengers traveling to Miami, or all passengers with sunglasses and loose clothing, or all passengers with carry-on luggage, or all passengers paying for their tickets in cash; but the combination of all of these—nervous cash-paying passengers traveling to Miami with sunglasses, loose clothing, and carry-on luggage only—would make one a prime target. The Internal Revenue Service does not audit all drywall contractors, all people living in San Francisco, all people with six dependents, or all people with substantial business expenses; but again the combination of these—San Francisco drywall contractors with six dependents and large claimed business expenses—will produce a significantly increased probability of audit.

In the context of searches for terrorists at airports, we see the same phenomenon. The currently employed Computer-Assisted Passenger Pre-screening System (CAPPS), the product of the White House Commission on Aviation Safety and Security, chaired by Vice-President Al Gore in 1997, has been used not for passenger searches but to decide which luggage, checked as well as carried on, should be examined with special care. Like all good profiles, the CAPPS system includes a multiplicity of factors but, following the explicit recommendation of the Gore Com-

mission, does not include race among them. Specifically, the commission decried the use of race on the grounds that a profile must be based on "reasonable predictions of risk, [and] not stereotypes or generalizations."[12]

Yet although the Gore Commission announced that including race (as well as ethnicity, national origin, and religion) in the profile was improper, it said nothing about why that was so. By defining stereotypes and generalizations as representing a category distinct from the category of reasonable predictions of risk, the Gore Commission sidestepped the question whether using race was improper *because* it was statistically irrelevant or improper *despite* its statistical relevance. And in avoiding this question, the Gore Commission rendered itself unable to confront a host of post–September 11 issues that arise in a context in which race—or ethnicity—appears to be nonspurious. Of course the thoughtful defenders of using race or ethnicity as part of a careful airport screening process, whether in order to examine luggage or to search passengers, do not argue that race or ethnicity should be the only characteristic that is employed. So when officials insist that race or ethnicity should not be the "sole" factor in airport screening,[13] they are arguing against a straw figure. The serious proponents of using race or ethnicity do not claim that either should be the exclusive factor, but only that each is permissibly a factor that should be employed to the full extent of its statistical relevance.[14]

Proponents of ethnic profiling maintain, therefore, that when ethnicity is merely one of multiple factors employed in deciding whom to target, then there is, assuming statistical relevance, no good reason not to include ethnicity and, when justified, race, as part of the larger profile. The argument is thus not that all people of Mid-

dle Eastern appearance (which could include name as well as physical appearance) should be targeted, but that Middle Eastern appearance may be a permissible component of an algorithm that also includes gender, age, form of purchasing the ticket (cash or credit card, last minute or well in advance, direct or through a travel agent), membership in a frequent flyer program, time of check-in, type of luggage, presence or absence of a hotel or rental-car reservation at destination, demeanor, and all the other factors that are part of the current CAPPS system.[15] So although under this view it would be unwarranted to stop all Middle Easterners or all Middle Eastern men, or all young Middle Eastern men, it would not be unwarranted to detain for at least brief questioning all nervous young Middle Eastern men who bought their tickets with cash at the last minute and checked in late with only carry-on luggage even though not all nervous non-Middle Easterners who bought their tickets with cash and checked in late with only carry-on luggage would be stopped.

In order for this algorithm to make statistical sense, each of the factors would have to contribute something to the reliability of the full algorithm. In other words, for race or ethnicity itself to be statistically relevant it would have to be the case that stopping nervous Middle Eastern men who have bought their tickets at the last minute with cash and have only carry-on luggage would yield more terrorists (or the same number of terrorists at lower cost) than would stopping nervous men of all races who have bought their tickets at the last minute with cash and have only carry-on luggage. When we see race or ethnicity or national origin as components of a considerably larger array of factors, it may possibly turn out, therefore, that race, ethnicity, and national origin are less

relevant than we suppose. Although most airplane terrorists have been young Middle Eastern Muslim men, it also turns out that most have been nervous people who have bought one-way tickets with cash at the last minute and have little luggage. Moreover, it would not be surprising to discover that most nervous people who buy one-way tickets with cash at the last minute and have little luggage are, if not terrorists, still up to no good in some form. In other words, it is possible that the fact of being a man of Middle Eastern origin is less contributory than many people suppose, and that an algorithm excluding race or ethnicity would be almost even if not quite as effective as one including it. To infer from the fact that most airline terrorists are Middle Easterners that Middle Eastern ethnicity is statistically relevant is a logical and statistical mistake, for even if Middle Easternness is nonspurious and genuinely contributes to the reliability of an algorithm including it, much of the predictive value may still be carried by other factors, even if not all of it is.

It appears highly unlikely, however, that race or ethnicity is as little relevant as this. On the evidence we now have, it is more than plausible to suppose that Middle Eastern ethnicity is a significant contributory factor, such that including it in the algorithm will make the algorithm substantially more effective than excluding it. In other words, it is likely that there is an appreciable number of cases in which the factor of race or ethnicity will push a case "over the line" from one not triggering scrutiny without the factor of race or ethnicity to triggering scrutiny with it.[16] If so, then even if we accept that using Middle Eastern appearance as the exclusive factor would be quite ineffective, and even if we accept that using a wide array of travel characteristics not including race or ethnicity

would be more effective than using race or ethnicity alone, we must still confront the question whether it would be permissible to include race or ethnicity when it can be shown that including these factors would produce a noticeable improvement in the effectiveness of the algorithm compared to using all the other relevant factors but not including race or ethnicity.

When race would indeed substantially increase the effectiveness of the algorithm, it would appear that there is a strong argument in its favor. Especially when the consequences are catastrophic, as they are in the case of terrorism in the air, it strikes many people as obvious beyond question that the losses in safety from using a decidedly worse algorithm are costs that few societies should be willing to bear.

Yet recall our discussion of gender, and of the possibility that at times we may wish to impose a compensatory underuse of a relevant factor in order to account for an expected overuse. Just as we may at times prohibit the use of gender even when it is statistically relevant in order to prevent it from being more of a factor than it actually is, so too might the same apply to race or ethnicity. Suppose that airline counter employees and airport baggage screeners were given a list of factors to employ in determining when to trigger special security investigations and precautions. And suppose that these factors included all of the ones we have been discussing: gender (male), ethnicity (Middle Eastern), demeanor (nervous), frequent flyer membership (no), date of ticket purchase (last minute), time of check-in (late), form of purchase (cash), use of travel agent (no), and type of luggage (carry-on only). Now from what we know about the social psychology of race and ethnicity, it is quite possible that these attributes would be treated as the most important among

many attributes of these factors even if they were not.[17] There are numerous reasons for this, but one of the most important is that race, gender, and age, and often ethnicity, unlike many other attributes, have a visibility and a consequent salience that makes them stand out more than other factors.[18] Such attributes thus have a tendency to be utilized more than their actual predictive contribution would justify. Because these attributes, unlike other personal characteristics and attributes, are "visually accessible, culturally meaningful, and interactionally relevant," such factors occupy more of the decisionmaking space than their empirical role would support.[19] In effect, race and ethnicity are, at least in part, encroachers on the terrain of other predictive factors, a feature of race and ethnicity that is not inconsistent with their being predictive factors in their own right. As a result, it is highly possble that airline counter employees would alert security when approached at the counter by neatly dressed Middle Eastern men checking their luggage who had purchased their ticket with a credit card a month in advance, but would not alert security when a jumpsuited and gold-jeweled Andrew Sokolow arrives to pay for his ticket in cash at the last minute and has only carry-on luggage. If this pattern existed, we might worry, on efficiency grounds as well as on moral ones, about the overuse of race and ethnicity and the consequent underuse of other relevant factors, and we might as a compensatory strategy prohibit the use of race and ethnicity just to ensure that they were not overused.

Consider, for example, the members of flight crews who in the first few months after September 11 insisted on the additional searching and questioning or at times even the removal from commercial airliners of various Middle Eastern men, all of whom turned out to have

been doing nothing wrong.[20] Now even if it were true that the observable features of these men made them somewhat more statistically likely to be terrorists than others on the airplane, so too might, hypothetically, the characteristics of, say, a non–Middle Eastern man on the airplane who paid cash for his one-way ticket, whose profession was explosives expert, who belonged to a "militia" organization, and who had recently been released on parole from prison. But although the second array of characteristics is likely to be more predictive of terrorism than is the combination of male gender, age between twenty and forty, and Middle Eastern appearance, all of the latter features are visible and none of the former ones are. The flight attendants and pilots who were fearful of the youngish Middle Eastern men should have had much more reason to be afraid of the cash-paying, one-way-flying, militia-belonging, paroled explosives expert; but they had no way of knowing from their own observation that the man in seat 14C was the explosives expert, whereas they had an easy way of knowing that the man in seat 8D was Middle Eastern. The very visibility of race and, often, ethnicity, therefore, may produce, among other things, the conditions of their frequent overuse.

If the likely overuse was sufficiently large to suggest a compensatory underuse, the resultant prohibition on the use of race and ethnicity would probably produce a lowered level of effectiveness as compared to allowing race and ethnicity to be used in their proper proportion by ideal airline employees. But there is no reason to suppose that airline employees are, on average, less inclined to overuse race and ethnicity than are the customs officials at O'Hare Airport. So it could well turn out that, in a world of nonideal employees inclined to overuse race and ethnicity even when they are statistically relevant,

mandatory underuse or nonuse would actually be more effective, not because race and ethnicity are not relevant, but because dramatic overuse of race and ethnicity might detract from the ability to examine closely those passengers with an even larger number of properly suspicion-raising characteristics and behaviors.

But again even this may not be so. Mandatory underuse may compensate for some overuse, but the net result may still be some loss of effectiveness in identifying potential terrorists. Although under some circumstances prohibiting the use of a nonspurious factor will be an efficient second-best solution that prevents more mistakes from its overuse than are created by its underuse, there is no reason to believe that this will always be the case. Under some circumstances race or ethnicity, even though likely to be overused, will be sufficiently statistically contributory that precluding their use may produce some net decrease in law-enforcement effectiveness.

Even under such conditions, the inclusion of race or ethnicity in the algorithm may still be unwise or unjust. If, for example, the accurate use of race or ethnicity produced more racial or ethnic separation than was morally or socially desirable, a particularly important consequence when people are taken out of a line and subjected to special attention, a society might decide that the loss of effectiveness was sufficiently small that it would be a price worth paying.[21] Or under circumstances of existing stigmatization by race or ethnicity for members of certain races or ethnic groups it again might well be worth paying a social price just in order to avoid any further racial or ethnic stigmatization.

Yet an increase in the actual amount of terrorism is a price that few people can be expected to believe is worth paying. So we need to examine more closely just what

the price would be. Still, even if the price of more terrorism is not worth paying in the way that the price of more marijuana dealing or even more drunk driving might be, it is a mistake to believe that the price must be paid in more terrorism, or even in more crime of any sort. The price of avoiding exacerbating existing racial or ethnic isolation or stigmatization could more plausibly be seen in the amount of time and effort necessary to produce the same degree of scrutiny and security without the savings of time and effort that the inclusion of a nonspurious racial or ethnic factor in the profile would bring. Because allowing the use of race and ethnicity imposes a cost on those members of the targeted groups who are in the area of overinclusion—Middle Easterners who have done nothing wrong—it might be preferable to distribute the cost more broadly, and in doing so raise the cost without lowering the degree of security. If excluding the relevant factor of Middle Eastern appearance from the algorithm made it necessary to increase the scrutiny of everyone—if excluding ethnicity while still including everything else increased waiting time at airports an average of thirty minutes per passenger—this might still be a price worth paying.[22] So if the increase in waiting time fully compensated for a suboptimal algorithm, the question is no longer one of ethnicity versus security, or ethnic sensitivity versus increased terrorism, but is the more manageable one of time versus security. Put starkly, the question of racial or ethnic profiling in air travel is not the question of whether racial and ethnic sensitivity must be bought at the price of thousands of lives. Rather, it is most often the question of whether racial and ethnic sensitivity should be bought at the price of arriving thirty minues earlier at the airport.

Driving while Black

The use of ethnicity in the context of airport security is a comparatively new concern, but the use of race and ethnicity in other law-enforcement contexts has been an issue for considerably longer.[23] And although the issue arises in many different law-enforcement settings, the most noteworthy has been that of automobile stops. Indeed, much of the current concern about so-called racial profiling stems from this very issue. When it was revealed several years ago that state police in New Jersey were stopping African Americans for allegedly routine or minor-violation checks at a rate far in excess of what could have been expected on the basis either of the percentage of African Americans in the New Jersey population or (and here the evidence is contested) of the percentage of African Americans committing traffic offenses, the African-American community was outraged but not surprised.[24] "Driving while Black" has long been the phrase used sarcastically by African Americans to describe the extent to which they are targeted for traffic stops predominantly because of their race.[25]

The incidents in New Jersey received the most publicity, but New Jersey was hardly unique in attracting complaints of this variety. Still, it is important to use our analysis thus far to try to determine just what New Jersey had done, and then to determine what was wrong with it.

In the first place, there is no indication that New Jersey had developed written formal profiles for determining which drivers were most likely to be committing offenses other than the ones that were visible from outside their automobiles. If one of the goals of stopping

some but not all of those who exceed the speed limit or are driving cars with defective equipment is to identify those who might be transporting illegal weapons or narcotics or who might have outstanding arrest warrants, then one possible way to do this would be by use of a written profile. There is no indication, however, that New Jersey had performed the statistical analysis necessary to produce such a formal profile. Indeed, there is no evidence that the New Jersey state police had produced any kind of formal profile, whether statistically grounded or not. In an important sense, therefore, the so-called profiling in New Jersey was worlds apart from the profiling practices of the Internal Revenue Service in identifying potential tax cheats and the profiling practices of the Customs Service in identifying possible drug couriers, for in both of the latter cases there was, and still is, a formal list of factors that, taken together, constitute the profile. Indeed, the original New Jersey procedure ought not to be glorified by referring to it as a "profile," for it would be more accurate to call it a "guess."

The fact that a profile is not written down and promulgated officially, however, does not mean that it does not exist. A profile could exist as a shared norm, and thus it is still possible that the state police officers in New Jersey enforced an unwritten norm that took the form of a profile of drivers empirically likely to be transporting contraband or likely to be wanted for other offenses. Supposing that such an unwritten norm existed, however, as it almost certainly did, leaves open a range of possibilities about what the substance of this norm actually was.

One possibility was that this norm was not a profile at all, in the sense of a perceived probabilistic generalization designed, even if imperfectly, to locate those who had violated the law. It could well have been, as with one

of the probable multiple motivations in the case of the O'Hare Airport customs officials, simply a norm of racial animus. Stopping African Americans may not have been a proxy for anything, and may have been, to some or many of the officers doing the stopping, an end in itself. As with the actions of some or many of the Customs Service officials at O'Hare airport, the actions of some of the New Jersey state police may have been more akin to those of a group of police officers wandering through a black neighborhood in a small southern town in the 1940s or 1950s solely for the purpose of asserting their authority and harassing the residents. Such actions are unqualifiedly reprehensible, but far removed from what people think of when they think of "profiling." "Targeting" is a bit closer to the mark, but "harassing" seems the most apt term of all, whether in Selma in 1963 or at O'Hare Airport in 1993 or on the highways of New Jersey in 1994. To describe this as "profiling" runs a serious risk of confusing the issue.

Alternatively, some of the New Jersey state police officers may have been following an unwritten norm according to which some officers believed that their goal was, in part, to stop those drivers especially likely to be carrying contraband or especially likely to be wanted on various nontraffic charges, and may have believed that race was an empirically sound proxy for these behaviors. For at least some of the police officers, rounding up what they perceived as "the usual suspects" may have been part of what they imagined to be an efficient and statistically justified law-enforcement tool. Indeed, the state police of New Jersey, while experienced at dealing with highway safety, were untrained novices at their newly assigned task of drug interdiction, and thus their immediate recourse to rounding up the usual suspects, whether em-

pirically justified or not, may have been mostly a product of their inexperience.[26]

Thus, it is well within the realm of possibility that the New Jersey police officers acted not (or not only) on the basis of racial animus, but also on the basis of a mistaken belief about the role of race in predicting highway drug-related offenses.[27] Like the beliefs of presumably some of the customs officials at O'Hare Airport, the belief that the race of the driver was a useful proxy for illegal activities may have been totally without empirical foundations. And if this was the case (and without the results of more thorough empirical analyses than have yet been performed we do not know with certainty), then the norm of targeting African-American drivers, even apart from the moral issues, may simply have been, like the searches of African-American women at O'Hare Airport, both inefficient and counterproductive.

Yet what about those instances in which using race is not totally spurious? What if the race of the driver is in fact sometimes, even if not on the Garden State Parkway, a statistically sound predictor of illegal activity beyond what could be otherwise observed by a police officer in another car or at the side of the highway? If and when this is so, then we again confront the question of the strength of the factor as a component of a larger profile. There are, to be sure, some factors that even if taken alone are strong predictors. If our only goal is to prevent false positives—overinclusion—then gender by itself is a strong predictor of the ability to lift a two-hundred-pound weight, and age over age sixty is a strong predictor of the lack of quick reflexes. But there has not been a strong suggestion that race is anywhere nearly that good a predictor of any form of illegality. Even if race is a statistically nonspurious predictor of unlawful activity, and

especially a statistically nonspurious predictor of serious unlawful activity within the group of those who are observed committing traffic violations, not even the staunchest defenders of using race as a factor in criminal apprehension would deny that it remains substantially under- and overinclusive in the context of identifying those who, without any other information, are likely to be carrying contraband, or are likely to be wanted for other crimes. In the context of using race to determine which traffic-offending drivers to investigate for possible nondriving offenses, race may be like wearing sunglasses while going through customs—statistically relevant but vastly under- and overinclusive.

If that is the case, then it turns out that there is, once again, a vast difference between a "racial profile" and what we might call a "profile that includes race." If race is part of a profile that includes numerous other components—nature of the traffic offense, type of automobile, number of people in the car, attire of the driver, condition of the vehicle, and many others—then using race and not all the others (assuming that race is not itself a sound proxy for some of the other factors) is like auditing all drywall contractors and waiters or stopping all people wearing sunglasses at points of entry.

On many of these issues the empirical evidence is spotty. Because what evidence we do have is based upon those who are stopped and not on a less biased (in the statistical sense of that word) array of all passengers or all drivers, we do not yet know with certainty whether Middle Eastern background is truly an independently statistically significant factor in identifying airport terrorists or whether being an African-American driver statistically predicts those with contraband or outstanding arrest warrants. Yet even if the racial or ethnic factors are

statistically relevant, it again does not necessarily follow that they ought to be used. Especially when the statistical contribution of race turns out to be small, and when the use of all other statistically relevant factors except race does not involve giving up much in effectiveness, there may be good arguments in favor of the exclusion of race even when the race-excluding profile is somewhat less predictive than the race-including profile. If it turns out that race, even when it is a nonspurious indicator of criminal conduct, is being used far in excess of what its statistical contribution would justify, then a statistically legitimate "profile that includes race" is being converted at the point of application into something that focuses only on race and ignores the other indicators that would be part of the full array of indicative factors. And if this is true, then, once again, a compensatory overdiminution (in practice, a prohibition) of the use of race may again be necessary. Even if we define racial profiling in its narrowest and most justifiable sense—including race in a large list of mostly nonracial factors that when taken together provide a good even if imperfect indicator for some sorts of illegal activity in some locations—it may often be the case that in actual application race may take on a larger role than the underlying evidence may justify. And if it is suspected that this is likely to be the case, then the strongest argument against including race is not that race is irrelevant, although it may sometimes be, but that race, even if relevant, is so likely to be overused that it is necessary to prohibit its use—to mandate its underuse—just to ensure that things come out even in the end.

As with the discussion of race at the airport, however, we ought not to make empirical assumptions, in the absence of better evidence, that make the problem easier than it is. To put it more directly, we ought to take seri-

ously the possibility that excluding race from the algorithm could come only at a high law-enforcement cost, a possibility that is not negated by the recognition of the fact that race is very likely to be overused.

Yet even when race is a substantial factor, and thus even when its exclusion would significantly decrease law-enforcement efficiency, the consequence of excluding race from the profile is an increase in crime only if we are holding cost and efficiency constant. But if we exclude race and are willing to suffer a decrease in efficiency but not in crime, as with for example increasing the number of roadblocks that would slow down and inconvenience all drivers without regard to race, but at more cost and annoyance to everyone, there need not be any reduction in the ability to apprehend criminals. As with the issue of increased waiting time at airports, the issue of when to refrain from using statistically justifiable racial factors in a larger profile in the service of avoiding isolation and stigmatization by race is not necessarily a conflict between equality and security or between racial sensitivity and crime control. In most cases the issue appears this way only because we take crime-control resources and citizen tolerance for minor inconvenience as givens. But if we do not, if we see the tradeoff not as one between crime and equality but as one between equality and inconvenience, the case for using even statistically well-grounded racial factors in policing and other forms of law enforcement becomes much weaker.

The major lesson of this chapter, however, especially when seen in contrast with chapter 6, is that the problems with racial profiling, problems that may justify imposing greater costs on society in order to avoid it, are not problems of profiling, with race being merely an example. Rather, and in parallel with the discussion of gen-

der in chapter 5, the problem is about race and not about profiling. Once we comprehend the ubiquity and inevitability of profiling, we see that the objection to racial profiling, when valid, will treat the racial component and not the profiling component of racial profiling as crucial. We may often have good reasons for excluding race from the array of characteristics we use to focus on some potential suspects and not others, but this will not be because race is irrelevant, and it will not be because profiling is impermissible, but because there may be important and race-specific reasons for excluding race as a factor even when there are good empirical grounds for including it.